

20STCV26621 20STCV26621

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-09-01

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BACKGROUND

This case is a lemon law action.

On July 15, 2020, Plaintiff Armando

Temoltzi-Ordonez filed a complaint against Defendants Orange Coast Auto Group, LLC and FCA US LLC. The complaint alleged four causes of action stemming from Plaintiff's purchase of an allegedly defective vehicle.

On January 20, 2026, Plaintiff filed a
Notice of Settlement of Entire Case.

On April 129, 2026, Defendant FCA US LLC
filed a Motion to Tax Costs.

On August 19, 2026, Plaintiff filed an
opposition.

No reply has been filed.

TENTATIVE RULING

Defendant's Motion to Tax
Costs is GRANTED in part.

Plaintiff is awarded costs
in the amount of \$7,807.46.

LEGAL STANDARD

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) Code of Civil Procedure section 1032, subdivision (a) defines a “prevailing party” as “[1] the party with a net monetary recovery, [2] a defendant in whose favor dismissal is entered, [3] a defendant where neither plaintiff nor defendant obtains any relief, and [4] a defendant as against those plaintiffs who do not recover any relief against that defendant.” “[T]he trial court has no discretion to deny prevailing party status to a litigant who falls within one of the four statutory categories in the first [sentence] of the provision.” (Charton v. Harkey (2016) Cal.App.4th 730, 738.)

Costs are allowable if incurred, whether or not paid. (Code Civ. Proc., § 1033.5, subd. (c)(1).) Costs must also be “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and must be reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3).)

A prevailing party claiming costs must file and serve a memorandum of costs either: (1) within 15 days after the date of service of a notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5; (2) 15 days after the service of written notice of entry of judgment or dismissal; or (3) within 180 days after entry of judgment, whichever is first. (See Cal. Rules of Court, rule 3.1700, subd. (a).)

“Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum.” (Cal. Rules of Court, rule 3.1700, subd. (b)(1).) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” (Ladas v. California State Automobile Ass’n (1993) 19 Cal.App.4th 761, 774.)

DISCUSSION

I.

Reasonable
and Necessary Costs

The Court will award costs
in the amount of \$7,807.46.

Here, Plaintiff is
requesting \$7,842.97 in costs. (See MC-010, p. 1.) Defendant contends that “everything
except for the \$480 in filing fees listed in Section 1 of the Memorandum of
Costs, is unsupported, unverifiable, and primarily non-recoverable convenience
charges, vendor surcharges, and statutorily prohibited expenses.” (Opp’n, p.
2:5-7.)

After consideration, the
Court will not tax costs stemming from: (1) relevant depositions; (2) model,
blowups, and photocopies of exhibits; (3) appearance attorney fees; (4) court
reporter fees; (5) attorney services and messenger court filings and services
fees; and (6) minute order fees. Although Defendant disputes these costs, it does
not show that these costs were not reasonable or necessary. (See *Ladas v.*
California State Automobile Ass’n (1993) 19 Cal.App.4th 761, 774.) Defendant
contends that Plaintiff failed to explain why these costs were reasonable and
necessary. The Court finds this improperly places the initial burden on
Plaintiff because these costs appear to be proper. (See Motion, pp. 4:2-5:5,
5:16-6:28.) Accordingly, Defendant has not satisfied its initial burden, and
these costs will not be taxed. (See *Ladas v. California State Automobile*
Ass’n (1993) 19 Cal.App.4th 761, 774.)

The Court will tax all
postage costs (i.e., \$35.51). (See MC-010, p. 4.) Postage costs are not
recoverable by statute. (See Code Civ. Proc., § 1033.5, subd. (b)(3).)

The Court will reduce
Plaintiff’s listed costs by \$35.51. Accordingly, Plaintiff is awarded \$7,807.46
in total costs.

CONCLUSION

For the foregoing reasons,

Defendant's Motion to Tax Costs is GRANTED in part.

Plaintiff is awarded

costs in the amount of \$7,807.46.